

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**JOHNSON v. WELLTOWER PEGASUS TENANT, LLC dba The Village at Rancho Solano, et al.
Case No. cu24-08117**

- (1) Motion by Plaintiffs to Compel Further Responses by Defendant PSL WELLTOWER OPCO, LLC to Requests for Production, Set One;
- (2) Motion by Plaintiffs to Compel Further Responses by Defendant WELLTOWER PEGASUS TENANT, LLC to Requests for Production, Set One;
- (3) Motion by Plaintiffs to Compel Further Responses by Defendant PSL ASSOCIATES, LLC dba The Village at Rancho Solano to Requests for Production, Set One; and
- (4) Motion by Plaintiffs to Compel Further Responses by Defendant PEGASUS SENIOR LIVING, LLC to Requests for Production, Set One

TENTATIVE RULING

Before moving to compel further responses to requests for production, the propounding party must first engage in meet and confer efforts over those responses. C.C.P. §2031.310(b)(2) [requiring a motion to compel further responses to be accompanied by a meet and confer declaration].

C.C.P. §2016.040(a) requires a meet and confer declaration to “state facts showing a reasonable and good faith attempt either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

A propounding party must make every reasonable effort to informally resolve disputes over served responses, before filing a motion to compel further responses.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. Obregon v. Superior Court (1998) 67 Cal.App.4th 424 [factors to be considered include the complexity of the discovery issues, the past history of the counsel on prior disputes, and to a certain extent, the judge's gut feeling; sending one brief letter 13 days prior to the deadline to file a motion to compel further responses did not constitute a sufficient "meet and confer" attempt].

The purposes behind the meet and confer requirement are to force the parties to reexamine their positions, and to narrow their disputes to the "irreducible minimum" before asking the court to resolve them. Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026), §8:1159, p. 67; See also Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1281, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431 [""informal resolution' of discovery disputes 'entails something more than bickering with (opposing counsel).' Rather, the statute 'requires that there be a serious effort at negotiation and informal resolution.'"]

Normally, the sending of one or two letters or emails is sufficient, as long as those communications are relatively specific and detailed in identifying the reasons why further responses should be provided, and cite to key relevant authority supporting those reasons.

Plaintiffs' counsel sent a few letters and numerous emails to Defendants' counsel about these requests for production served on the four entity defendants. But the letters were brief and did not cite any cases on alter ego, joint venture or single enterprise theories of liability on the part of entities other than the licensee of the facility. And the emails were largely about timing as to when amended responses were to be provided, and extensions of the deadlines to file motions to compel further responses.

There was no detailed citation to important authorities type of exchange of positions before these motions were filed (or even in the motion papers themselves).

The court finds that these meet and confer efforts were inadequate as to all of these motions, and thus denies all of these motions on this basis.

The defendants are not blameless in their roles in the meet and confer process. For example, it is not enough for a defendant to assert a claim of undue burden, without providing evidence as to what burden responding to discovery would cause, inclusive of an estimate of the amount of time and expense responding to the discovery would be reasonably expected to take.

The denial of these motions is without prejudice to Plaintiff refiling within 90 days of this hearing any parts of these motions still at issue, but only after more extensive meet and confer efforts, in which citations are made to the applicable authority justifying the discovery requests as to documents concerning entities other than the licensee.